SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA

Filed
April 27, 2026
Clerk of the Court
Superior Court of CA
County of Santa Clara
C2602632
By: jdominguez

In re

BRENDAN NGHESI NEWANFORBI,
Petitioner.

Habeas Corpus No. C2602632
Trial Ct. No. C1761642

ORDER DENYING PETITION FOR WRIT OF HABEAS CORPUS WITHOUT PREJUDICE

On habeas corpus.

Petitioner Brendan Nghesi Newanforbi filed in the Superior Court a petition for writ of habeas corpus in which he requests that the court order that he be relieved from continuing participation in the sex offender management program while on parole. Petitioner relies on Penal Code section 3008, subdivision (d)(2), which provides, "Persons placed on parole on or after July 1, 2012, shall successfully complete a sex offender management program, following the standards developed pursuant to Section 9003, as a condition of parole. The length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court. Participation in this program applies to every person described without regard to when his or her crime or crimes were committed."

Petitioner has not exhausted his administrative remedies. "The exhaustion requirement is jurisdictional: a court cannot hear a case before a litigant exhausts administrative remedies." (Wright v. State of California (2004) 122 Cal.App.4th 659, 664-665.) Petitioner contends that exhaustion would be futile because officials of the California Department of Corrections and Rehabilitation determined in another case involving a different parolee that that parolee could not be discharged from the program prior to the end of his parole term. But, Penal Code section 3008, subdivision (d) clearly contemplates that it is the certified sex offender management professional and the parole officer who determine the length of

the program. The determination of Petitioner's program length necessarily involves individual considerations that must be made by the appropriate parties as required by the statute. (See also Cal. Code Regs., tit. 15, § 3574e&(f) [describing review to determine program completion].) While the court has authority to ultimately approve these decisions, (see Pen. Code, § 3008, subd. (d)(2)), review by the sex offender management professional is a necessary prerequisite to the court's review.

The petition is hereby DENIED WITHOUT PREJUDICE to exhausting all available administrative remedies.

It is so ordered.

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April 27, 2026

Dated: _____, 2026

HON. ROBERT HAWK
Judge of the Superior Court

_____

cc:
Petitioner
District Attorney (motions_dropbox@dao.sccgov.org)
Research (2-23F)